

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1295
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 31, chapter 2, article 2, Arizona Revised
3 Statutes, is amended by adding section 31-243, to read:

4 31-243. Inmate medical release to medical institution;
5 eligibility; definitions

6 A. NOTWITHSTANDING ANY OTHER LAW, THE DIRECTOR MAY RELEASE AN
7 INMATE FROM CUSTODY FOR PLACEMENT IN A MEDICAL INSTITUTION THAT IS UNDER
8 CONTRACT WITH THIS STATE TO EXCLUSIVELY PROVIDE MEDICAL CARE TO AN INMATE
9 WHO IS RELEASED BY THE DEPARTMENT IF THE INMATE AND THE DIRECTOR RECEIVE
10 WRITTEN CONFIRMATION FROM THE ARIZONA HEALTH CARE COST CONTAINMENT SYSTEM
11 ADMINISTRATION THAT THE INMATE QUALIFIES AS AN ELIGIBLE PERSON FOR
12 ENROLLMENT IN THE ARIZONA LONG-TERM CARE SYSTEM PURSUANT TO TITLE 36,
13 CHAPTER 29, ARTICLE 2.

14 B. THE MEDICAL INSTITUTION THAT IS CONTRACTED TO CARE FOR INMATES
15 PURSUANT TO THIS SECTION SHALL ALLOW INMATES WITHIN THE MEDICAL
16 INSTITUTION'S CARE TO HAVE FREEDOM OF MOVEMENT AND ASSOCIATION WITHIN THE
17 MEDICAL INSTITUTION AND TO USE THE MEDICAL INSTITUTION'S INTERNAL
18 COMMUNITY RESOURCES. THE MEDICAL INSTITUTION MAY NOT PLACE MOVEMENT OR
19 ASSOCIATION LIMITS ON AN INMATE WITHIN THE MEDICAL INSTITUTION BASED ON
20 THE INMATE'S STATUS AS AN INMATE UNLESS THE MEDICAL INSTITUTION FINDS THAT
21 INCREASED SUPERVISION OR CARE IS NEEDED DUE TO THE INMATE'S MEDICAL
22 CONDITION OR AGE.

23 C. THE DIRECTOR OF THE STATE DEPARTMENT OF CORRECTIONS MAY WORK
24 WITH ONE OR MORE DESIGNEES WHO ARE EMPLOYED BY THE STATE DEPARTMENT OF
25 CORRECTIONS TO FACILITATE THE RELEASE OF AN INMATE TO A MEDICAL
26 INSTITUTION. THE DIRECTOR SHALL BASE THE DECISION TO RELEASE AN INMATE ON
27 AN ASSESSMENT OF THE INMATE'S FINANCIAL AND MEDICAL ELIGIBILITY FOR THE
28 ARIZONA LONG-TERM CARE SYSTEM THAT IS MADE BY THE DIRECTOR OF THE ARIZONA

1 HEALTH CARE COST CONTAINMENT SYSTEM ADMINISTRATION OR THE DIRECTOR'S
2 DESIGNEE.

3 D. THE DIRECTOR OF THE STATE DEPARTMENT OF CORRECTIONS OR THE
4 DIRECTOR'S DESIGNEE SHALL ESTABLISH A PROCESS FOR AN INMATE OR AN
5 INTERESTED PARTY TO SUBMIT A REQUEST TO DETERMINE THE INMATE'S PRELIMINARY
6 BASELINE ELIGIBILITY FOR RELEASE TO A MEDICAL INSTITUTION. THE BASELINE
7 ELIGIBILITY DETERMINATION IS SEPARATE FROM THE ELIGIBILITY DETERMINATION
8 FOR THE ARIZONA LONG-TERM CARE SYSTEM AND IS MEANT TO ESTABLISH ONLY THE
9 INMATE'S PRELIMINARY BASELINE ELIGIBILITY FOR RELEASE TO A MEDICAL
10 INSTITUTION.

11 E. WITHIN THIRTY DAYS AFTER RECEIVING A REQUEST FOR RELEASE
12 PURSUANT TO SUBSECTION D OF THIS SECTION, THE DIRECTOR OR THE DIRECTOR'S
13 DESIGNEE SHALL NOTIFY THE INMATE OR INTERESTED PARTY WHO MAKES THE REQUEST
14 IF THE INMATE MEETS THE PRELIMINARY BASELINE ELIGIBILITY REQUIREMENTS FOR
15 THE ARIZONA LONG-TERM CARE SYSTEM. A DETERMINATION THAT AN INMATE MEETS
16 THE PRELIMINARY BASELINE ELIGIBILITY REQUIREMENTS IS NOT AN ASSURANCE THAT
17 THE INMATE WILL QUALIFY FOR THE ARIZONA LONG-TERM CARE SYSTEM. ONCE AN
18 INMATE'S PRELIMINARY BASELINE ELIGIBILITY IS DETERMINED, THE INMATE SHALL
19 COORDINATE WITH THE ARIZONA HEALTH CARE COST CONTAINMENT SYSTEM
20 ADMINISTRATION FOR FURTHER EVALUATION TO DETERMINE THE INMATE'S
21 ELIGIBILITY FOR THE ARIZONA LONG-TERM CARE SYSTEM.

22 F. AN INMATE WHO APPLIES FOR RELEASE TO THE ARIZONA LONG-TERM CARE
23 SYSTEM MAY NOT RECEIVE COVERED SERVICES UNTIL THE INMATE IS RELEASED TO A
24 MEDICAL INSTITUTION.

25 G. WITHIN FIFTEEN DAYS AFTER THE DEPARTMENT RECEIVES A WRITTEN
26 DETERMINATION FROM THE ARIZONA HEALTH CARE COST CONTAINMENT SYSTEM
27 ADMINISTRATION THAT THE INMATE IS ELIGIBLE AND QUALIFIES FOR ENROLLMENT AS
28 AN ELIGIBLE PERSON FOR THE ARIZONA LONG-TERM CARE SYSTEM, THE DIRECTOR
29 SHALL INFORM THE INMATE OF THE INMATE'S ELIGIBILITY FOR RELEASE TO A
30 MEDICAL INSTITUTION.

31 H. AFTER AN INMATE IS DETERMINED TO BE ELIGIBLE FOR MEDICAL RELEASE
32 TO A MEDICAL INSTITUTION PURSUANT TO THIS SECTION, THE DEPARTMENT, ON
33 REQUEST OF THE VICTIM OF THE OFFENSE FOR WHICH THE INMATE WAS
34 INCARCERATED, SHALL NOTIFY THE VICTIM. THE NOTICE MUST INCLUDE THE DATE
35 OF THE INMATE'S RELEASE AND THE ADDRESS OF THE MEDICAL INSTITUTION WHERE
36 THE INMATE WILL BE RESIDING.

37 I. IF THE INMATE NO LONGER MEETS THE ELIGIBILITY REQUIREMENTS FOR
38 ENROLLMENT IN THE ARIZONA LONG-TERM CARE SYSTEM, THE INMATE SHALL BE
39 RETURNED TO THE CUSTODY OF THE DEPARTMENT.

40 J. FOR THE PURPOSES OF THIS SECTION:

41 1. "BASELINE ELIGIBILITY" MEANS A DETERMINATION THAT THE INMATE
42 MEETS THE FOLLOWING REQUIREMENTS:

43 (a) IS AT LEAST SIXTY-FIVE YEARS OF AGE, BLIND OR HAS A
44 ~~DISABILITY~~ DEBILITATING ILLNESS.

45 (b) IS A UNITED STATES CITIZEN OR A QUALIFIED IMMIGRANT.

46 (c) HAS A SOCIAL SECURITY NUMBER OR IS ELIGIBLE TO APPLY FOR A
47 SOCIAL SECURITY NUMBER.

1 (d) IS A RESIDENT OF THIS STATE.
2 ~~[2. "DISABILITY":~~
3 ~~(a) MEANS A MEDICALLY DETERMINABLE PHYSICAL OR MENTAL IMPAIRMENT~~
4 ~~THAT MEETS ALL OF THE FOLLOWING:~~
5 ~~(i) RESULTS IN THE INMATE'S INABILITY TO DO ANY SUBSTANTIAL GAINFUL~~
6 ~~ACTIVITY.~~
7 ~~((ii) CAN BE EXPECTED TO RESULT IN DEATH.~~
8 ~~((iii) HAS LASTED FOR OR CAN BE EXPECTED TO LAST FOR A CONTINUOUS~~
9 ~~PERIOD OF AT LEAST TWELVE MONTHS.~~
10 ~~(b) INCLUDES EMOTIONAL OR LEARNING IMPAIRMENTS.]~~
11 [2. "DEBILITATING ILLNESS" MEANS ANY OF THE FOLLOWING FOR WHICH AN
12 INMATE HAS BEEN DIAGNOSED BY A TREATING PROVIDER OR PHYSICIAN:
13 (a) A TERMINAL ILLNESS THAT WILL REDUCE THE INDIVIDUAL'S LIFE
14 EXPECTANCY.
15 (b) A SERIOUS ILLNESS THAT RESULTS IN THE INABILITY TO
16 INDEPENDENTLY PERFORM ONE OR MORE ACTIVITIES OF DAILY LIVING.
17 (c) A LIFE THREATENING ILLNESS THAT CAN BE MORE APPROPRIATELY
18 TREATED OUTSIDE THE CORRECTIONAL FACILITY AND FOR WHICH THE MORE
19 APPROPRIATE TREATMENT MAY PREVENT PREMATURE DEATH.
20 (d) A SERIOUS FUNCTIONAL OR COGNITIVE IMPAIRMENT OR DETERIORATING
21 PHYSICAL OR MENTAL HEALTH DUE TO THE AGING PROCESS THAT RESULTS IN THE
22 INABILITY TO INDEPENDENTLY PERFORM ONE OR MORE ACTIVITIES OF DAILY
23 LIVING.]
24 3. "ELIGIBLE PERSON" HAS THE SAME MEANING PRESCRIBED IN SECTION
25 36-2931.
26 4. "MEDICAL INSTITUTION" MEANS AN ASSISTED LIVING FACILITY OR
27 HEALTH CARE INSTITUTION AS DEFINED IN SECTION 36-401 THAT HAS CONTRACTED
28 WITH THIS STATE TO PROVIDE CARE.

29 Enroll and engross to conform

30 Amend title to conform

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